

HOUSE BILL 749

By Reeves

AN ACT to amend Tennessee Code Annotated, Title 55,
Chapter 50, relative to driver licenses issued to
persons without lawful presence.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 55, Chapter 50, Part 3, is amended by
adding the following as a new section:

55-50-355.

Not later than December 1, 2025, the department shall develop and publish on its
website a list of out-of-state classes of driver licenses issued to illegal aliens that are
invalid in this state in accordance with SECTION 2. The department shall update the list
as necessary in order to correct mistakes and to add or remove an out-of-state class of
driver license to keep the list in conformity with the requirements of SECTION 2.

SECTION 2. Tennessee Code Annotated, Title 55, Chapter 50, Part 3, is amended by
adding the following as a new section:

(a) If a driver license is of a class of driver licenses issued by another state
exclusively to illegal aliens, then the driver license is invalid in this state and does not
authorize the holder to operate a motor vehicle in this state. For purposes of this
section, "driver license" includes a permit purporting to authorize the holder to operate a
motor vehicle on public roadways. The class of driver licenses described in this
subsection (a) includes driver licenses that are:

(1) Issued exclusively to illegal aliens; and

(2) Contain a marking or are designed in such a manner as to be easily
distinguishable from driver licenses issued to residents of that state who:

(A) Are United States citizens or lawful permanent residents of the United States; or

(B) Have temporary legal presence and a specified period of authorized stay in the United States.

(b) It is an offense for a person to operate a motor vehicle in this state with an invalid driver license described in subsection (a). A violation of this subsection (b) is a Class B misdemeanor.

SECTION 3. Tennessee Code Annotated, Section 55-50-304, is amended by adding the following at the end of subdivisions (3) and (4) immediately preceding the semicolon:

, if the nonresident's license is not invalid under SECTION 2

SECTION 4. Section 1 of this act takes effect upon becoming a law, the public welfare requiring it. All remaining sections of this act take effect January 1, 2026, the public welfare requiring it.